

02:00 PM **LINE 6**

24-CIV-08329

JONATHAN YUN VS. TOYOTA MOTOR SALES, U.S.A., INC.

JONATHAN YUN
TOYOTA MOTOR SALES, U.S.A., INC.

ELLIOT CONN
SEAN D BEATTY

Defense Motion to Transfer/Change Venue to Los Angeles County Superior Court

TENTATIVE RULING:

For the reasons stated below, defendant Toyota Motor Sales, U.S.A., Inc.'s Motion to Transfer Venue to Los Angeles County Superior Court, filed on February 23, 2026, is **DENIED**.

A. Background

Plaintiff's Complaint, filed on December 30, 2024, asserts causes of action against defendant for breach of warranty under the Song-Beverly Consumer Warranty Act; fraud; and violations of California's Consumer's Legal Remedies Act. On February 23, 2026, defendant filed this motion requesting a transfer of venue to Los Angeles County Superior Court. Defendant argues that the majority of witnesses reside in Los Angeles County, which would make it a more convenient forum. Plaintiff opposes the Motion.

B. Governing Law

The court designated in the original complaint is presumed to be a proper court for trial. (*Mission Imports Inc. v. Superior Court* (1982) 31 Cal.3d 921.) Therefore, the party moving to transfer venue has the burden of establishing the facts necessary to justify a change of venue. (*Buran Equip. Co. v. Superior Court* (1987) 190 Cal.App.3d 1662, 1666.) Code of Civil Procedure, section 397 states, in part that "The court may, on motion, change the place of trial in the following cases: * * * (c) When the convenience of witnesses and the ends of justice would be promoted by the change.

Code of Civil Procedure, section 395, subdivision (b) states, in part:

(b) Subject to the power of the court to transfer actions or proceedings as provided in this title, in an action arising from an offer or provision of goods, services, ... intended primarily for personal, family or household use, ... the superior court in the county where the buyer or lessee in fact signed the contract, *where the buyer or lessee resided at the time the contract was entered into, or where the buyer or lessee resides at the commencement of the action is the proper court for the trial of the action ...*

"It is well established that a defendant is entitled to have an action tried in the county of his or her residence unless the action falls within some exception to the general venue rule." (*Brown v. Superior Court* (1984) 37 Cal.3d 477, 483.) "Section 395 codifies this rule and

provides that the trial of the action shall be in the county of the defendant's residence, '[e]xcept as otherwise provided by law.'" (*Ibid.*)

In *Fontaine v. Superior Court* (2009) 175 Cal.App.4th 830, 838 the Court of Appeal explained that "whether the action is brought against a consumer defendant or by a consumer plaintiff, the venue provisions of section 395, subdivision (b) apply as long as the action arises from a consumer transaction specified in the statute." Accordingly, an "an action arising from an offer or provision of goods, services, loans or extensions of credit intended primarily for personal, family or household use" may be tried where the buyer lived at the time the contract was entered into or at the time the complaint was filed.

C. Application

Having reviewed the parties' briefing and the authority cited, defendant's request to transfer venue to Los Angeles County Superior Court is denied. When plaintiff filed this case he resided in San Mateo County, which made his choice of venue in San Mateo County permissible even though he could also have filed suit elsewhere.

Although Code of Civil Procedure, section 397 provides that the court may transfer venue to another county for the purpose of promoting "the convenience of witnesses and the ends of justice" (Code Civ. Proc., § 397, subd. (c)), in exercising its discretion, the court declines to do so here. Plaintiff filed this case approximately 18 months ago. Defendant answered the First Amended Complaint on May 2, 2025, over a year ago. Defendant's delay in seeking a change of venue weighs against granting the motion. Defendant knew from the outset that plaintiff purchased the vehicle in Los Angeles County, and had the vehicle serviced in Southern California. (See, e.g., FAC, ¶ 13 ["Plaintiff purchased the Vehicle from Keyes Lexus, an authorized TOYOTA dealership, in Van Nuys, California"]; ¶ 27 [plaintiff took the Vehicle to TOYOTA authorized warranty repair facility, South Bay Lexus, in Torrance, California, for warranty repair. South Bay Lexus performed a circuit inspection ..."].) Knowing these facts, defendant litigated this case for over a year before requesting a change of venue.

Further, although multiple witnesses appear to be based in the Los Angeles area, the depositions appear to have been notice via remote video, obviating their need to travel. And, assuming the case proceeds to trial, it is unclear from defendant's proffered evidence which witnesses would likely testify.

Viewing all of the factors discussed in the parties' briefing collectively, while defendant's argument regarding witness convenience (or inconvenience) has some merit, affording due respect for plaintiff's choice of venue, the court declines to transfer venue to the Los Angeles County Superior Court.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, plaintiff's counsel shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), and

provide written notice of the ruling to all parties who have appeared in this action. The order should be e-filed only, do not email or mail a hard copy to the court.

02:00 PM **LINE 7**

25-CIV-04781

YAZMIN SANCHEZ VS. MERCEDES-BENZ USA, LLC

YAZMIN SANCHEZ
MERCEDES-BENZ USA, LLC

LUIS SERRANO
MEHGAN GALLAGHER

Motion for Judgment on the Pleadings

TENTATIVE RULING:

Defendant Autobahn, Inc.’s Motion for Judgment on the Pleadings is **GRANTED**.

As a preliminary matter, defendant Autobahn, Inc. has not complied with subdivision (a)(3) of Code of Civil Procedure section 439. The statute requires a party moving for judgment on the pleadings to be accompanied by a declaration stating either that the parties met and conferred as required or that the opposing party failed to respond or otherwise meet and confer. (*Ibid.*) The declaration submitted with the motion merely states that Autobahn’s counsel “attempted to communicate” with plaintiff Yasmin Sanchez’s counsel. (Feb. 13, 2026 Declaration of Meghan Gallagher, ¶ 2.) This is insufficient. Autobahn and its counsel are ordered to full comply with the Code of Civil Procedure in connection with all future pleadings or motions.

As for the merits, Autobahn moves for judgment on the pleadings as to the Complaint’s third cause of action, which is based on Autobahn’s purported negligence in storing, preparing, and repairing Sanchez’s vehicle. (June 25, 2025 Complaint, ¶¶ 49–51.) “The elements of a cause of action for negligence are well established. They are (a) a legal duty to use due care; (b) a breach of such legal duty; [and] (c) the breach as the proximate or legal cause of the resulting injury.” (*Ladd v. County of San Mateo* (1996) 12 Cal.4th 913, 917, quotation marks omitted.)

To properly state a cause of action, a complaint must allege every element of that cause of action. (*Shaeffer v. Califia Farms, LLC* (2020) 44 Cal.App.5th 1125, 1134.) As with a demurrer, a complaint’s “contentions, deductions, or conclusions of law” must be disregarded on a motion for judgment on the pleadings. (*AIDS Healthcare Foundation v. Los Angeles County Dept. of Public Health* (2011) 197 Cal.App.4th 693, 698.)

In an attempt to plead the third element — an injury proximately caused by the breach — the Complaint alleges, “[Autobahn’s] negligent breach of its duties owed to [Sanchez] was a proximate cause of [Sanchez’s] damages.” (Complaint, ¶ 52.) This is a pure legal conclusion: damages are merely the *money* to be paid in compensation for an injury, and there is no allegation of what actual injury — whether to Sanchez’s person or property — was caused by Autobahn’s purported negligence. (Black’s Law Dict. (12th ed. 2024) Damages; see Complaint, *passim*.)
